

October 28, 2022

By Email

Federal Maritime Commission
Attn: William Cody, Secretary
800 North Capitol Street, N.W.
Washington, D.C. 20573
secretary@fmc.gov

Re: *MCS Indus., Inc. v. MSC Mediterranean Shipping Co. SA*, Docket No. 21-05
(Fed. Mar. Comm'n)

Dear Secretary Cody:

Upon inquiry received today from the Federal Maritime Commission's ("FMC") Office of Administrative Law Judges, I write on behalf of MCS Industries, Inc. ("Complainant"), the Complainant in the above-referenced case, to respond briefly to Respondent MSC Mediterranean Shipping Company SA's ("MSC") unsolicited October 18, 2022 submission (the "Submission") regarding recent correspondence between MSC's Swiss counsel and the Swiss Federal Office of Justice ("FOJ").

Beyond the fact that MSC's Submission merely attaches email correspondence, and not any formal opinion or decision of the FOJ, and further does not provide a certified English translation of that correspondence, the Submission adds *nothing* to the analysis of the potential default judgment against MSC currently being considered by the Presiding Officer. Instead, the Submission addresses issues that have already been decided or rendered moot by the Presiding Officer's prior orders in this case. As the Presiding Officer noted in her September 8, 2022 Order Denying Respondent's Motion for an Extension of Time and Order to Show Cause (the "Order"):

The question of whether Swiss assistance with discovery is required has been answered by the undersigned Administrative Law Judge and by the Court of First Instance in Geneva. MSC Mediterranean Shipping's position did not prevail and now it must produce discovery or face procedural consequences. Relitigation of the same issue will not be permitted and has only delayed this proceeding.

Order at 2; *see also* July 29, 2022 Order Requiring Production of Discovery at 1–3.

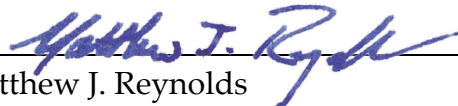
Consistent with the authorities cited in the Presiding Officer's prior orders in this case:

a mere "risk" that Article 271 might be applied is insufficient to carry [MSC's] burden. *See, e.g., In re Air Cargo Shipping Servs. Antitrust Litig.*, No. 06-MDL-1775 (VVP), 2010 WL 2976220, at *1 (E.D.N.Y. July 23, 2010) ("The possibility that [party requesting the protective order] will suffer hardship in complying with the discovery order is speculative at best. Although the defendant cites the prospect of criminal sanctions, . . . it has cited no instance in which such sanctions have ever been imposed."). In short, [MSC] fails to establish with "sufficient particularity and specificity" that Article 271 would prohibit disclosure of the materials at issue here in the absence of a court order threatening criminal sanctions. *Alfadda [v. Fenn]*, 149 F.R.D. [28,] at 34 [(S.D.N.Y. 1993)]. There is, of course, no such order in place here.

EFG Bank AG v. AXA Equitable Life Ins. Co., No. 17-CV-4767 (JMF), 2018 WL 1918627, at *2-3 (S.D.N.Y. Apr. 20, 2018).

If anything, MSC's continued efforts with this Submission to relitigate (without appealing) previously decided issues in this case merely serve to reinforce its apparent disregard for, or even contempt of, the Presiding Officer's decisions and, indeed, the FMC's jurisdiction over it. The Submission can and should be disregarded as addressing issues that are already decided and/or moot. Even if considered, nothing in the Submission alters the fact that, for the reasons detailed in Complainant's October 6 response to the Presiding Officer's Order, default judgment against MSC is the appropriate remedy in this case.

Respectfully submitted,


Matthew J. Reynolds

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